Amendment of section 5.

88. In section 5 of the Customs Act,—

(*a*) after sub-section (1), the following sub-sections shall be inserted, namely:—

"(1A) Without prejudice to the provisions contained in sub-section (1), the Board may, by notification, assign such functions as it may deem fit, to an officer of customs, who shall be the proper officer in relation to such functions.

(1B) Within their jurisdiction assigned by the Board, the Principal Commissioner of Customs or Commissioner of Customs, as the case may be, may, by order, assign such functions, as he may deem fit, to an officer of customs, who shall be the proper officer in relation to such functions.";

(*b*) after sub-section (3), the following sub-sections shall be inserted, namely:—

"(4) In specifying the conditions and limitations referred to in sub-section (1), and in assigning functions under sub-section (1A), the Board may consider any one or more of the following criteria, including, but not limited to—

(*a*) territorial jurisdiction;

(*b*) persons or class of persons;

(*c*) goods or class of goods;

(*d*) cases or class of cases;

(*e*) computer assigned random assignment;

(*f*) any other criterion as the Board may, by notification, specify.

(5) The Board may, by notification, wherever necessary or appropriate, require two or more officers of customs (whether or not of the same class) to have concurrent powers and functions to be performed under this Act.".

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